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Sturgeon, Townsend, Walsh; Reps. Lambert,
Michael Smith, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 28

AN ACT TO AMEND TITLE 18 OF THE DELAWARE CODE RELATING TO FUNERAL EXPENSES FOR
CERTAIN VOLUNTEERS WITH FIRE OR AMBULANCE COMPANIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 6750, Title 18 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 6750. Funeral expenses for deceased volunteer firefighters.

(a) The ~~reasonable~~ funeral expenses of a deceased member of a volunteer fire company, volunteer fire company
ladies ~~auxiliary~~ auxiliary, or volunteer ambulance and rescue company ~~shall~~ must be paid in the amount not to exceed of
\$7,000.

(b)(1) ~~If the deceased member of such company was a state employee entitled to a funeral benefit, this chapter
shall not apply. A~~ An individual is eligible for funeral expenses under this chapter if the individual served, in this State, as
an active member of a volunteer fire company, volunteer fire company ladies auxiliary, or volunteer ambulance
and rescue company for the purposes of this chapter is one who has served as an active member of such organization in
Delaware for at least 10 years.

(2) The 10 years of service required under paragraph (b)(1) of this section includes years of service as an
active member of 1 or more volunteer fire companies, volunteer fire company ladies auxiliaries, or volunteer
ambulance and rescue companies in this State.

(c) If an individual eligible for funeral expenses under this chapter was a state employee entitled to a benefit under
§ 8331 of Title 11, § 8395 of Title 11, § 8846 of Title 11, § 5316 of Title 29, or § 5546 of Title 29, the individual is also
eligible for the benefit under this chapter.

Section 2. This Act takes effect on October 1, 2025.

SYNOPSIS

Section 1 of this Act requires that \$7,000 be paid for the funeral expenses of a deceased member of a volunteer fire
company, volunteer fire company ladies auxiliary, or volunteer ambulance and rescue.

Consistent with a legal interpretation of the existing law by state agencies, Section 1 of this Act continues to enable the payment of funeral expenses for the funeral of a deceased member of a volunteer fire company, volunteer fire company ladies auxiliary, or volunteer ambulance and rescue company even if the member was also a state employee entitled to burial benefits under § 8331 of Title 11, § 8395 of Title 11, § 8846 of Title 11, or § 5316 of Title 29. However, Section 1 of this Act makes changes to existing law to make this legal interpretation clear and to specifically identify the state employee burial benefits to which this provision applies.

Section 2 of this Act delays the effect of this Act until October 1, 2025, to provide time to implement this Act after the enactment of the fiscal year 2026 appropriations act containing the funding for this Act.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Brown